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Booklet -65

Modern India - 43

(Freedom and Partition)

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GS Foundation 2024: Modern India
Handout 43: Final Years (1945-47)

Nikhil Sheth

C Rajaji Formula and Gandhi-Jinnah Talks (1944)

It was the plan prepared by C. Rajagopalachari with instruction from Gandhiji to settle the differences prevailing between Congress and ML in March 1944.

It proposed Congress-League cooperation on the following terms:

1. Immediately
    a. Muslim League to endorse Congress demand for independence. Both Congress and Muslim League should work together for the attainment of independence from British Rule.
    b. League to cooperate with Congress in forming a provisional government at centre.

2. Long Term
    a. The issue of partition will be decided *after* independence by holding a *plebiscite* in Muslim majority areas.
    b. Even in case of partition, both units shall maintain co-operation on essential matters such as defense, foreign affairs, communication, and currency.
3. The above terms to be operative only if England transferred full powers to India.

It was a tacit acceptance of the League's demand for Pakistan. Gandhi supported the formula. It was discussed by Gandhiji and Jinnah at Bombay in June 1944, after his release from jail.

The talks failed and the formula could not resolve the prevailing deadlock because Jinnah insisted that the issue of partition should be decided at *before* independence and only then he would co-operate for the attainment off independence. His points of objection were:

- Jinnah wanted the Congress to accept the two-nation theory.
- He wanted only the Muslims of North-West and North-East to vote in the plebiscite and not the entire population.
- He also opposed the idea of a common centre.

While the Congress was ready to cooperate with the League for the independence of the Indian Union, the League did not care for independence of the Union. It was only interested in a separate nation.

Desai Liaqat Pact

Bhulabhai Desai was a Congress leader in central legislative assembly and Liyaqat Ali Khan was deputy leader of ML in the same house. With the blessings of Gandhiji in Jan 1945 they held talks to fund solution for the political deadlock prevailing in India due to differences between Congress and Muslim League. They came up with the draft proposal for the formation of an interim government at the centre:

1. Both Congress and ML should have equal places in the interim government.
2. Both Congress and ML should work together for the attainment of Independence

These talks failed to find a solution for the prevailing political deadlock because when Jinnah came to know about it, he immediately repudiated the talks. No settlement could be reached between the Congress and the League on these lines, but the fact that **a sort of parity between the Congress and the League was decided upon** had far-reaching consequences.

The Wavell Plan and Shimla Conference (1945)

The Second World War came to an end in May 1945. Various international developments and developments within India, **convinced Britain, that, Indian independence could not be delayed.** The Plan was an **interim measure** or a **stop-gap arrangement**, basically to meet with some of the **commitments made in the Cripps proposal**, because:

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- The war with Japan in the Pacific was still going on.
- General elections were soon to take place in Britain and any long-term decision could be taken only by the new government.

In this context, the real problem at this stage was to establish a transitional government acceptable to both the Congress and the Muslim League.

In June 1945, Wavell announced a scheme to ease the political situation and to push India forward towards her goal of full-scale self-government. This is known as the **'Wavell Plan'.**

The Wavell Plan offered **reconstitution of the Viceroy's Executive Council:**

- All the members of this executive council barring the Viceroy and the commander-in-chief would be Indians. The vital department of external affairs would be in the hands of an Indian member.

- The Executive Council was already predominantly of Indians at this time, but the members were non-political. So, Viceroy was now to pick members of the Executive Council out of persons nominated by the political parties.
- Different communities were to get a share in the Council and parity was to be ensured between Hindus and Muslims.

Most of the Congress leaders were **released in June 1945 to enable them to participate in the Shimla conference** (June 1945) called by the Viceroy to discuss the proposals and find a way out of the political deadlock, in order to setup a new executive council.

However, this conference ended in a failure because

- League demanded that Muslims not belonging to the League could not be appointed to the Executive Council. Jinnah insisted that the Muslim League should be taken as the sole representative of the Muslim masses.
- The Congress was not prepared to accept such demands of the Muslim League. Maulana Azad, as the leader of Congress delegation, maintained that Congress represented all the communities of India, and thus had the right to nominate Muslim members as well, and that it would not accept to be labelled as a Hindu party.

It was becoming gradually clear that **nothing less than Pakistan was acceptable to the Muslim League and Jinnah**.

Since the deadlock could not be resolved, the Viceroy dropped the proposal.

Wavell's Mistake: Wavell announced a breakdown of talks. It gave the League a virtual veto and strengthened is position. It came as a great encouragement for ML because Jinnah got convinced that no effort towards constitutions advancement in India would succeed without the consent of ML. It boosted ML's position, as was evident from the elections in 1945-46. Thus, the real character of the Conservative government of Churchill was exposed.

Cabinet Mission (1946)

It was the last attempt towards a negotiated settlement for Indian independence, while keeping its unity intact.

Background:

- In July 1945, the **general elections were held in Great Britain**. In this election the conservatives were defeated, and the **Labour Party under the leadership of Atlee** came to power. The Labour Party which assumed office was in favour of acceding to the Indian demands. In August 1945, Japan also surrendered, putting the final end to the World War 2.
- As a first step, Atlee announced
    - **General elections** would be held in India for the Central and the Provincial assemblies. It was also declared that an Executive Council would be formed and a constitution making body would be called after the elections.
    - He said that the high-power delegation would include three members of the British Parliament. This is known as the **Cabinet Mission**. It comprised of **Pethick-Lawrence**, the Secretary of State for India and two members of the British Cabinet **Sir Stafford Cripps** and **A.V. Alexander**. It was **to work out the details of transfer of power.**

Central and Provincial Elections (Dec 1945 – Feb 1946):

The election results showed communal polarization.

- **Central Assembly**
    - Congress won all the 59 general seats but none of the Muslim seats.
    - Muslim League won all the 30 seats reserved for Muslims.
- **Provincial Assemblies**
    - Congress won 90% of the general non-Muslim seats, including almost all the seats reserved for Scheduled Castes, and formed governments in 8 provinces.
    - ML got 446 (or 423) out 495 (or 491) Muslim seats and formed governments in Bengal and Sindh.
    - In **Punjab**, it had tremendously improved its position by winning 79 seats as against the Unionist Party getting only 10 seats. The result of the Punjab Assembly was more dramatic as in the 1937 election the League had acquired only one seat. A coalition government of Congress, Unionist Party and the Akalis was formed in Punjab.
    - Congress had fielded only 94 candidates for the 491 Muslim seats and won 34 – about 30/34 were in **NWFP** largely due to the influence of Khan Abdul Gaffar Khan-the Frontier Gandhi'.

The results showed that while Congress had fully retained its hold over the Hindu electorate, Muslim League had been the biggest gainer since the elections of 1937. This was due to Jinnah's organisational activities as well as due to his vicious propaganda campaign. Thus, the

real significance of the 1945 elections was that the League boldly started claiming that it solely represented the voice of the Muslim masses in India.

Cabinet Mission in India:

- On March 24, 1946, the Cabinet Mission arrived in India.
- The members of the Mission held intensive discussion with all concerned, viz., leaders of the Congress, the League, Sikhs, the Scheduled castes and a host of other groups.
- The delegation rejected the demand for Pakistan forthwith and proposed for a weak Union of India- consisting of British India provinces and the Princely States. Its proposals included:
    - A **Federation** comprising the British Indian territories and the Princely states.
        - **Central Government** in-charge of defence, foreign policy, communication. An **interim government** to govern until the new constitution was implemented.
        - In all other matters the **provinces** would enjoy complete self-government. To satisfy the Muslim League the plan provided for extensive powers for the provinces.
    - **Constituent Assembly**
        - The **provinces** would be classified into three **groups**,
            - A Category: six Hindu-dominated provinces
            - B Category: Muslim-dominated provinces in West
            - C Category: Muslim majority provinces in East
        - The representatives of the provinces or the three different categories would constitute the **Constituent Assembly** which would prepare a new constitution.
        - Each category would be **free, if they so desired, to form a separate group** of provinces. The provinces could secede from the groups but not from the Union of India. This was supposed to satisfy the Congress.

Concerns

The scheme was initially accepted by both the Congress and the Muslim League, but later differences arose regarding the **interpretation of the proposals.**

	League	Congress
Long Term Problems	Ruled out the idea of an independent Pakistan	No immediate independence
Weak Centre	Provided considerable autonomy to the provinces, two of which it now governed.	Not the kind of federation it envisaged. There were apprehensions that with a weak centre, the provinces might secede in future.

		Congress was also disagreeable to the concept that in the Princely States, it would be the potentates and not the people who would decide about accession.
Grouping clause	All the six provinces, which the League wanted Pakistan to comprise, were put in Groups B and C which, in any case, would remain under the dominance of the League. Thus, as against six provinces under the Congress dominance, the League got six provinces almost bringing a kind of parity with the former. Thus, **League accepted the Plan.**	Congress accepted the proposals but at the same time expressed reservations about grouping. It tried to wriggle out of the situation by putting its own interpretation on the grouping of the provinces that it would be **optional and not compulsory**, which was **rejected by the Mission**. The **Congress accepted it *partially*** because it was not happy with the system of grouping of provinces. Congress accepted those provisions of CMP which were related to established of Constituent Assembly.
Note: The **Sikhs** were also against the prospect of being ruled by Muslims in case Punjab was grouped with Muslim majority provinces.		

Wavell's "Breakdown Plan"

Wavell presented his plan to the Cabinet Mission in May 1946. This plan envisaged the withdrawal of the British Army and officials to the Muslim provinces of North-West and North-East and handing over the rest of the country to the Congress.

Though superseded by the Cabinet Mission Plan, Wavell's plan was evidence of

- British recognition of the impossibility of suppressing any future Congress-led rebellion.
- Desire in some high official circles to make a "Northern Ireland" of Pakistan.

First Attempt to form an Interim government (June):

The short-term objective of the Cabinet Mission Plan was the installation of an interim government, comprising all major Indian political groups. But the formation of the interim government became cause of friction.

In June 1946, the Viceroy made an abortive bid for the installation of an Interim Government. But he failed in his attempt because:

- Jinnah again claimed to be the sole representative of Muslims and would not let Congress nominate Muslims in the cabinet. He also insisted on the League's parity with the Congress as well as its exclusive right to nominate all Muslim members – an idea which was not acceptable to the Congress.

The Cabinet Mission left India for England on 29 June 1946, after having obtained the consent of two major groups but unable to form an interim government. It had failed basically because it was too late in the day to provide a practicable and acceptable solution and implementing its plan was sure to lead to fragmentation instead of mere partition.

Constituent Assembly Formation:

Elections (July 1946)

The elections to the Constituent Assembly were held in July, 1946. Members of the body were elected by the provincial assemblies through a system of proportional representation.

- The Congress won the elections by a huge margin. It won 208 seats – 199/210 general category seats, and 3 of the 78 reserved for Muslims.
- The Muslim League got 73 out of the 78 seats reserved for Muslims, which now confirmed it as the sole representative of the Muslims.

Nehru's statement:

Barely two weeks after the acceptance by the two major groups**, a statement by Jawaharlal Nehru on 10 July 1946** about the Congress interpretation of the plan threw a spanner in its scheme of implementation. Nehru declared that Congress was not bound by any restrictions of the proposals; he was only agreeing to join the constituent assembly, and it was for the constituent assembly to decide upon all the issues.

League's rejection of the Plan:

Nehru's statement raised a hue and cry on the part of the **League**, which ultimately led to **its rejection of the plan on 29-30 July 1946.** The League was apprehensive about the whole scheme of the Constituent Assembly in view of the overwhelming majority of the Congress. Thus, the **League backed.** It claimed that Congress was 'bent upon setting up a caste-Hindu Raj' in India with the connivance of the British and demanded the immediate establishment of Pakistan.

Second Attempt to form an Interim government (6 August):

On 12 August 1946, the Viceroy invited Nehru to form the interim government. The situation took a turn for the worse when Nehru offered 5 seats to Jinnah which was rejected by the latter. This again sparked off the demand for Pakistan.

Direct Action (16 August)

Jinnah now called on the 'Muslim nation' to resort to 'direct action'. August 16 was fixed as 'Direct Action Day' with a clearly stated objective of achieving Pakistan. The League's direct action was directed against the Hindus and not against the Government.

- In Calcutta, encouraged and protected by the local Muslim League government, League volunteers went on a rampage of arson, rape and murder. Hindus resorted to counter-violence and for several days riot ruled the streets. Thousands were killed and injured. This terrible episode is known as the **Great Calcutta Killing.**

- Soon the League-inspired riots spread to the other parts of the country, including eastern Bengal, Bihar and Assam as well. It entirely vitiated the whole atmosphere.

Finally, formation of Interim Government (2 September 1946)

On 24 August 1946, the Viceroy declared that an interim government comprising 12 members (6 Hindus, 3 Muslim and 3 from other minorities) would soon be installed. It was also announced that two more Muslim members would be subsequently added, taking its total strength to 14.

While communal violence continued to ravage the country, the interim government led by Nehru was sworn in on September 2, 1946.

League Joins Interim Government (13 October 1946)

The League was now persuaded by Wavell to join in. The League accepted Nehru's leadership and accepted portfolio (13 October).

But the League joined the interim government virtually on its own terms: it had neither withdrawn its resolution of 29-30 July 1946, rejecting the long-term component of the Mission plan, nor was it willing to join the Constituent Assembly.

In fact, with the League's joining the interim government, the situation took a turn for the worse, so far as the issue of governance was concerned. **Jinnah's intention was to sabotage** the working of interim government from within, because smooth working of the government only meant increase of Congress power, and dilution of the issue of partition. He wanted to paralyse the whole system till his demand for Pakistan was met.

- It continued to obstruct the functioning of the government to create a deadlock. Muslim League members of the cabinet would obstruct every decision of Congress ministers: Liaquat Ali as the finance minister would reject every proposal of Nehru making a mockery of the interim government.
- To further destabilise the whole administrative system Muslim League started a series of communal riots all over the country.
- Even the hopes that it would also soon join the Constituent Assembly were soon belied.

The whole situation appeared to be grim in the face of roaring communal violence all over the country.

Constituent Assembly (9 December 1946)

The Muslim League boycotted the Constituent Assembly when it ultimately met on 9 December 1946. There were in all 15 women members.

- 11 Dec: President Appointed: Rajendra Prasad, vice-chairman Harendra Coomar Mookerjee and constitutional legal adviser B. N. Rau
- 13 Dec: An **'Objective Resolution'** was presented by Jawaharlal Nehru, laying down the underlying principles of the constitution, which later became the Preamble of the constitution.

- Nehru declared the resolve of the Constituent Assembly to proclaim India an Independent Sovereign Republic – as a Union constituting of territories that comprised British India and the Princely States – as well as other territories willing to join the Union.

- The Muslim League retaliated by more street violence and law and order situation worsened, creating conditions of near anarchy.
- Thus, it adjourned till 20 January 1947, in the hope that the Muslim League members might join it by that time.

The Congress raised the demand that either the League members should join the Constituent Assembly or leave the interim government. **The League would neither leave the interim government nor would join the Constituent Assembly.**

When the Constituent Assembly reassembled on 20 January 1947, the Objective resolution unanimously adopted. But the Muslim member continued to boycott it.

Soon the League denounced the composition of the Constituent Assembly, which made the Congress demand the League's resignation from the interim government. But the **Viceroy hardly took any concrete steps to seek the resignation of the League** members from the Interim government or to make them join the Constituent Assembly.

The stalemate continued and all attempts to work out the Cabinet Mission Plan in its entirety had come to a naught by the beginning of 1947. Thus, the die was cast for the non-implementation of the Cabinet Mission Plan in its entirety. Thus, the **Cabinet Mission Plan, in its original form, was virtually dead.** The last attempt to keep India as a united country ended in a fiasco.

- **20 February 1947**: PM **Attlee declared** in the parliament, that the British would be leaving India by June 1948.
    - The historic declaration surprised many. The declaration, however, put it plain, that, the Indians would have to settle their differences within the stipulated period.
    - In the wake of Attlee's statement another series of bloody communal riots, fomented by the Muslim League, swept over the Punjab and Bengal. The country was moving towards a civil war situation.
- **Mar 1947: Lord Mountbatten came to India** as the Viceroy with a clear mandate to hasten the process of the British withdrawal from India.
    - Wavell who had favoured the continuation of the British rule for a few years more was replaced by Lord Mountbatten.
    - He was given a clear mandate to arrange for the transfer of power to the Indian hands as soon as possible.

Thus, new ideas for a constitutional settlement and the British withdrawal started being explored, leading to the Mountbatten Plan.

Freedom with Partition (1947)

I shall perhaps not be alive to witness it (the partition) but should the evil I apprehend overtake India and her independence be imperilled, let posterity know what agony this old soul went through thinking of it. Let it not be said that Gandhiji was a party to India's vivisection. But everybody today is impatient for independence. Therefore, there is no other help.

Mahatma Gandhi

Mountbatten

Admiral Lord Louis Mountbatten, the new Viceroy reached India on March 22, 1947 and too charge on 24th March.

Mountbatten had one year's time and was given "plenipotentiary powers" to complete the transition. Soon after arrival in India, he plunged into a serious discussion with all Indian leaders including the princes, He found the situation too explosive for a gradual transfer of power. He concluded that partition was the only practicable and feasible solution.

Mountbatten had initially proposed that all provinces would be independent successors. Each province would be allowed to choose whether to join constituent assembly or not. Punjab and Bengal would be partitioned by simple majority. This plan was the **'Plan Balkan' (Dickie Bird Plan)** as it could have led to the balkanisation of India. It was presented in mid-April by General Sir Hastings Ismay to assembly of provincial governors in Delhi. This, this plan was also called "**Ismay Plan**." But in view of Nehru's strong opposition to the plan, it was abandoned at an initial stage.

June 3rd Plan (Mountbatten Plan) and Partition of India:

An alternative plan, in which V P Menon had a hand (as constitutional advisor), was prepared which came to be known as the **Mountbatten Plan**. It had the following components:

(1) India was to be partitioned and a new state of **Pakistan** was to be created along with a free India. The Muslim dominated provinces such as Sindh, Baluchistan, Northwestern Frontier Province, Western Punjab and East Bengal would constitute Pakistan.

(2) **The Constituent Assembly** would go ahead with the task of framing the Constitution. The dissident group of the Muslim league would have its own Constituent Assembly. (Each dominion would be free to frame its constitution.)

(3) Partition

a. The provinces of Punjab and Bengal would be partitioned based on majority of population at the district level.

b. In the NWFP and Sylhet, the people would exercise their choice of joining one or the other Constituent Assembly through referendum.

(4) There would be a **negotiated settlement between the successor government and the British Government** about the matters arising out of the transfer of power.
(5) The **British paramountcy** over the princely states would come to an end with the transfer of power. They would be absolutely free to decide their fate, they might join any one of the dominions or retain their autonomy.

This was followed by Lord Mountbatten's declaration on 4 June that the transfer of power would take place by **15 August 1947.**

Finally came the acceptance of the partition plan both by the Congress and the League.

- An AICC meeting during 14-15 June 1947 endorsed the plan with some opposition. As a consolation, the AICC, while accepting the partition plan, expressed the hope that ultimately, the doctrine of two nations would be discarded by all.
- This was soon followed by the acceptance of the plan by the Muslim league though it

Now, the plan was approved by the House of Commons and enacted as the **Indian Independence Act of 1947.** It received the royal assent on **18th July 1947.**

At the same time the **Radcliff Boundary Commission** was appointed to draw the borders separating India and Pakistan. Radcliff hurriedly drew the maps-some 8000 kilometres of border line-in just about 5 weeks' time.

On **15 August 1947**, two dominions of India and Pakistan came into being. Mountbatten released the Boundary Award on August 16/17, 1947.

The Constituent Assembly of India met on 14 August 1947 and as the midnight approached **Jawaharlal Nehru** delivered his memorable speech on India's **'tryst with destiny'**. He expressed the joy of millions of men and women in the following words: "*Long years ago we made a tryst with destiny, and now the time comes when we shall redeem our pledge, not wholly or in full measure, but very substantially*". The Congress President J.B. Kripalini, himself a man of Sind, said that it was "*a day of sorrow and destruction for India.*" **Lord Mountbatten** was appointed as the first Governor-General of India and a new cabinet headed by Jawaharlal Nehru was sworn in by him.

Similarly, on the same, i.e., 15 August, came into being, the Dominion of Pakistan with **Jinnah** as the Governor-General and **Liaquat Ali Khan** as the Prime Minister. It was a special day for Jinnah who had singlehandedly succeeded in carving out a Muslim State by getting India partitioned. But he was far from happy with the Pakistan he got and he described it as "*truncated and moth-eaten.*"

By an irony of fate, **Mahatma Gandhi**, who had spearheaded the movement for independence of India, was not present to participate in these celebrations. He was far away, fighting almost singlehandedly, the entire army of marauders maddened by communal frenzy.

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